OPERATING AGREEMENT OF JON-AIR REV8 ENTERPRISE LLC

A Member-Managed Florida Limited Liability Company

THIS OPERATING AGREEMENT (the "Agreement") is entered into as of this _____ day of _____, 20___, by and among **JON-AIR REV8 ENTERPRISE LLC** (the "Company") and the undersigned Members, Founders, and Build Participants.

ARTICLE I: ORGANIZATION & PURPOSE

1.1 Formation & Mission: The Company is organized as a member-managed Limited Liability Company under the laws of the State of Florida. The core purpose of the Company is to organize collaborative, sweat-equity build runs of specialized, low-center-of-gravity, shallow-water utility airboats ("Jon-Air rev8") engineered specifically for Everglades invasive species management and python hunting.

1.2 Multi-Batch Structure: The initial scope of the Company shall consist of a **Pilot Batch** of four (4) vessels. Subsequent production runs ("Batch 2" and beyond) shall proceed in accordance with the rolling queue and credit rollover rules established herein.

ARTICLE II: CAPITAL CONTROLS, BUILD GUIDE & SWEAT EQUITY

2.1 Master Build Guide as Source of Truth: The Company shall maintain a Master Build Guide and Bill of Materials (BOM) as the official ledger of record. Each construction task is pre-assigned a fixed *DIY Labor Hour Estimate*, required *Skill Tag* (e.g., MIG/TIG Welding), and a *Professional Outsource Cost*.

2.2 Anti-Slacker Credit Valuation: Sweat-equity labor credit logged toward member obligations is strictly pegged to the pre-estimated task hours in the Master Build Guide, regardless of actual clock hours spent. Efficient completion rewards skill; slow work yields no additional credit.

2.3 Outsource Option: Any participant may satisfy an assigned task by paying the listed Professional Outsource Cost to an approved third-party vendor, logging the exact receipt expenditure into the Master Ledger for equivalent credit.

2.4 Single & Shared-Founder Buy-In Tiers:

- **Anchor Founder:** An individual providing 100% of the baseline cash material cost for a vessel and executing a binding pledge for one boat's worth of fixed-estimate labor shall be allocated full ownership of one (1) designated vessel upon completion.
- **Shared-Owner Groups:** Two or more individuals may pool cash and labor to satisfy one vessel's baseline. An executed *Joint Ownership Addendum* must be filed prior to hull allocation detailing internal scheduling and co-titling terms.

ARTICLE III: PROTOTYPE TESTING GATES & FAIL-SAFE DISSOLUTION

3.1 Mandatory Prototype Validation Gates: Construction shall begin on **Hull #1 (The Prototype)**. No secondary hulls in any batch shall be completed or distributed until Hull #1 has cleared five mandatory Testing Gates, verified in **both simulated workshop conditions and actual Everglades field trials**:

1. **Structural Integrity:** Frame, stringer grid, and UHMW armor load verification under static loads and dynamic field impacts.
2. **Stability:** Static and dynamic roll/tilt thresholds tested in both simulated tank/rig environments and actual Everglades marsh conditions.
3. **Flotation:** Coast Guard reserve buoyancy and engine displacement compliance verified in shop and open water.
4. **Electrical Code Compliance:** Overcurrent protection, grounding, and marine-spec wiring inspected and bench/field tested.
5. **Regulatory Readiness:** Full compliance for state Vessel Titling and Hull Identification Number (HIN) registration.

3.2 Impracticality & Wind-Down Protocol: If Hull #1 fails any Testing Gate during either simulated or field evaluations and the Managing Members determine by majority vote that the design is impractical or unsafe, all active builds shall halt immediately. The LLC shall liquidate all inventory, unused aluminum, engines, and donor parts. Net proceeds shall be distributed pro-rata based on recorded ledger contributions (cash and verified task-hour credits), and the LLC shall dissolve.

ARTICLE IV: THE "ALL-BOATS-COMPLETE" RULE & BATCH 2 ROLLOVER

4.1 All-Boats-Complete Precondition: No individual vessel shall be titled, transferred, or removed from the build facility until **100% of all vessels in the active batch** have passed final inspection and crossed the completion line.

4.2 Micro-Contributor Credit & Caveat Emptor: Ad-hoc volunteers contributing cash or labor below the full-vessel threshold acquire zero title, fractional equity, or direct ownership in any physical hull (*Caveat Emptor*). Verified ledger credits accrued by micro-contributors shall roll forward as a deposit toward **Batch 2**, or be redeemed for in-kind gear payouts and shared fleet usage days per LLC policy.

ARTICLE V: INSURANCE & COMPREHENSIVE LIABILITY SHIELD

5.1 Mandatory LLC Insurance Architecture: The LLC shall maintain active policy coverage for its entire operational duration: (a) *Commercial General Liability (CGL)* covering workshop facility premises and construction operations, and (b) *Directors & Officers (D&O) / Entity Liability* protecting leadership against internal corporate or governance disputes.

5.2 COMPLETE WAIVER OF DESIGN LIABILITY & HOLD HARMLESS

All blueprints, CAD files, assembly guides, testing reports, and instructions are provided strictly **"AS-IS"** for collaborative experimental assembly. Every member, volunteer, and participant explicitly agrees to defend, indemnify, and hold harmless the Company, its organizers, original designers, and fellow builders from any injury, disability, death, property damage, or vessel failure. This waiver applies to all design, structural, or assembly defects, **UP TO AND EXPLICITLY INCLUDING CLAIMS OF GROSS NEGLIGENCE** by the organizers, designers, or prototype testers.

5.3 POST-DELIVERY TRANSFER & "LEAVING THE DOCK" SEVERANCE

Title and physical possession of a completed vessel shall **never** transfer until the recipient provides proof of an active, independent **Marine Watercraft Liability Policy** assigned to that specific HIN and owner name. Upon leaving the build facility, the recipient accepts 100% of mechanical, operational, navigation, and third-party liability. The LLC, its organizers, and its designers bear zero ongoing product or operational liability once a boat leaves the dock.

ARTICLE VI: EXECUTION & ACKNOWLEDGMENT

By signing below, each Member and Participant certifies that they have read, understood, and agreed to all terms, specifically acknowledging the **Sweat Equity Ledger Rules**, the **Testing Gate Protocol**, the **Complete Waiver of Design Liability (including Gross Negligence)**, and the **Mandatory Individual Insurance Requirement**.

ORGANIZER / MANAGING MEMBER:

Signature: _____
Date: _____

PARTICIPANT / MEMBER:

Signature: _____
Date: _____